

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JOSE SURIEL,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
DUDLEY EWALD (Shield # 17310), NYPD
DETECTIVE NOEL E. LAWRENCE (Shield # 20680),
NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers are unknown at present) and
Other unidentified members of the NYPD.

Defendants.
-----X

SUMMONS

Index #:

Basis of Venue:
Place of Incident

Plaintiff designates
Kings County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 29, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007NYC
NYPD DETECTIVE DUDLEY EWALD (Shield #17310), 70th Precinct and NYPD DETECTIVE
NOEL E. LAWRENCE (Shield # 20680), 74th Precinct, Kings County, NY.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JOSE SURIEL,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
DUDLEY EWALD (Shield # 17310), NYPD
DETECTIVE NOEL E. LAWRENCE (Shield # 20680),
NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers are unknown at present) and
Other unidentified members of the NYPD.

Defendants.
-----X

Plaintiff **Jose Suriel**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff. Defendants additionally subjected Plaintiff to cruel and unusual punishment in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Jose Suriel is a resident of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD DETECTIVE DUDLEY EWALD, assigned shield # 17310 and NYPD DETECTIVE NOEL E. LAWRENCE, assigned shield # 20680, are employed with the New York City Department of Correction and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

5. NYPD DETECTIVE DUDLEY EWALD, assigned shield # 17310 and NYPD DETECTIVE NOEL E. LAWRENCE, assigned shield # 20680, are being sued in their individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

12. On January 31, 2018, at approximately 6:05 a.m. at 567 50th Street, Brooklyn, NY, several NYPD Officers, including upon information and belief, defendant NYPD Detective Dudley Ewald and NYPD Detective Noel E. Lawrence, and NYPD Officers John and Jane Doe #'s 1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Jose Suriel.
13. On January 31, 2018, at approximately 6:05 a.m. Plaintiff Suriel was home sleeping when police officers broke down the main door to his building and entered his residence. Plaintiff was immediately placed in handcuffs, along with his wife, and daughter, and made to sit in the living room while NYPD officers searched his home.
14. The moment defendant officers entered Plaintiff Suriel's home, he was not free to leave.

15. When NYPD officers entered the residence, they were not in possession of probable cause or reasonable suspicion that Plaintiff had committed a crime. They were also not in possession of a search or arrest warrant naming Plaintiff Suriel. Plaintiff repeatedly asked defendant officers for proof of a search warrant and it was never provided to him.
16. Defendants purported that plaintiff was in possession of heroin and cocaine at his residence, but this is not true. The criminal complaint alleges that both heroin and cocaine were recovered from the residence, but does not specify the alleged quantity of drugs or the location where the drugs were allegedly found. Plaintiff Suriel was never in any possession of drugs either on his person or in his vicinity. He was not aware of an drugs or contraband in the apartment.
17. Plaintiff Suriel suffered significant pain as a result of his initial confinement. A prior rib injury made it very painful to lie or sit on the floor. Plaintiff was in custody for 36 hours prior to his arraignment and during that period of custody he was required to sit or lay on the floor. He asked for alternative sleeping arrangements or accommodations, but his request was denied.
18. While plaintiff was incarcerated at Kings County Central Booking, defendants falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed the crimes of Criminal Possession of a Controlled Substance in the third and seventh degree.
19. Based on the defendant's false statements, the New York County District Attorney's office chose to prosecute plaintiff under docket 2018KN005699.
20. Plaintiff Suriel paid a private attorney \$3,500 to represent him in the criminal case.
21. Plaintiff was incarcerated for approximately 5.5 months. During his confinement he was subject to depraved, filthy and inhumane conditions. His wife passed away while he was incarcerated and he was not granted leave to see her or attend the funeral.
22. All charges against Plaintiff Suriel were dismissed and sealed on July 27, 2018.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

23. Plaintiff repeats and alleges paragraphs 1 through 22 as if fully set forth herein.
24. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
25. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

26. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

27. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.
28. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
29. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
30. Defendants commenced and continued a criminal proceeding against plaintiff.
31. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
32. The prosecution and criminal proceedings terminated favorably to plaintiffs on January 8, 2020.
33. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
34. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
39. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
40. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
41. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
42. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
44. Defendants owed a duty of care to plaintiff.
45. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
46. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
47. All of the foregoing occurred without any fault by plaintiff.
48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
51. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
52. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

53. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff, despite his repeated requests they do so. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm.
55. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
56. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH, NINTH, TENTH and ELEVENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (8th claim); false-arrest/cruel and unusual punishment/unlawful-search claims (9th claim); malicious prosecution claim (10th claim) and deprivation-of-fair-trial claim (11th claim).

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.
58. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.

59. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
60. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights.
61. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of cruel and unusual punishment, unlawful search, malicious prosecution, and fabrication of evidence violated his First, Fourth, Fifth, Eighth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
62. Moreover, plaintiff exercised free speech during the incident by, among other things, peacefully telling the individual defendants that they had not committed a crime, and that the officers were mistreating plaintiff. Plaintiff's use of free speech owns a motivating factor in defendants' decision to arrest, use force upon, and persecute him. Accordingly, defendants are liable to plaintiff under the First Amendment of the United States constitution for violating plaintiffs' right to free speech.
63. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
64. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TWELFTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.
66. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
67. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
68. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of

New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

69. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
70. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
71. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
72. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, JOSE SURIEL, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 29, 2021

Respectfully submitted:

By: /s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007NYC
NYPD DETECTIVE DUDLEY EWALD (Shield #17310), 70th Precinct and NYPD DETECTIVE
NOEL E. LAWRENCE (Shield # 20680), 74th Precinct, Kings County, NY.

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
January 29, 2021

Sydney Ohagan /s/ _____
Sydney O'Hagan, Esq.